

SUPREME COURT OF THE STATE OF NEW YORK
QUEENS COUNTY

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CHRISTOPHER ROPER,

Plaintiff,

-against-

THE CITY OF NEW YORK, NYPD DETECTIVE
MARIQUE BARTOLDUS (Shield # 5772), NYPD
DETECTIVE ANTHONY CRESCIMANNO
(Shield # 2494), NYPD DETECTIVE JOSEPH
MANZELLA (Shield # 2492), NYPD DETECTIVE COLIN
SPARKS (Shield # 3032), and NYPD OFFICERS JOHN
and JANE DOE #'s 1-12 (names and numbers unknown at
this time), and Other Unidentified members of the New
York City Police Department,

Defendants.

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SUMMONS

Basis of Venue:
Place of Incident

Plaintiff Designates
Queens County
as the place of trial

To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
October 21, 2022

Respectfully submitted,

/s/ Sydney O'Hagan
Sydney O'Hagan, Esq.
40 Exchange Place
Suite 1000
New York, New York 10005
(774) 218-3461
sydney.ohagan@gmail.com

TO:

CITY OF NEW YORK: CORPORATION COUNSEL, 100 Church Street, New York, NY 10007

NYPD DETECTIVE MARIQUE BARTOLDUS, (Shield #5772), Intel Cis Fio Program, 1 Police Plaza,

NYPD DETECTIVE ANTHONY CRESCIMANNO, (Shield # 2492), Intel Cis Fio Program, 1 Police

Plaza, NYPD DETECTIVE JOSEPH MANZELLA, (Shield # 2492), 113th Detective Squad, NYPD

DETECTIVE COLIN SPARKS, (Shield # 3032), 105th Detective Squad.

SUPREME COURT OF THE STATE OF NEW YORK
QUEENS COUNTY

-----X
CHRISTOPHER ROPER,

Plaintiff,

**VERIFIED
COMPLAINT**

-against-

THE CITY OF NEW YORK, NYPD DETECTIVE
MARIQUE BARTOLDUS (Shield # 5772), NYPD
DETECTIVE ANTHONY CRESCIMANNO
(Shield # 2494), NYPD DETECTIVE JOSEPH
MANZELLA (Shield # 2492), NYPD DETECTIVE
COLIN SPARKS (Shield # 3032), and NYPD
OFFICERS JOHN and JANE DOE #'s 1-12
(names and numbers unknown at this time), and
Other Unidentified members of the New York City
Police Department,

Defendants.

-----X
Plaintiff **Christopher Roper**, by his attorney, SYDNEY O'HAGAN, ESQ., as and for the Complaint herein,
alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983 and the rights secured by the Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution. Plaintiff was unlawfully stopped, searched, and arrested by the defendants. Plaintiff was deprived of his federal constitutional rights and common law rights when the individually named police defendants subjected him to, among other things, false arrest, unlawful search and seizure, negligence, gross negligence, intentional and negligent infliction of emotional distress, malicious prosecution, and implementation and continuation of an unlawful municipal policy, practice, and custom. Plaintiff

seeks compensatory and punitive damages, declaratory relief, an award of costs and attorney's fees and such other relief as the Court deems just and proper.

PARTIES

2. Plaintiff is a resident of Queens County, State of New York.
3. Defendant City of New York is a municipal corporation organized under the laws of the State of New York, which violated plaintiff's rights as described herein.
4. NYPD DETECTIVE MARIQUE BARTOLDUS, assigned Shield # 5772, who at the time of this incident was employed as a Field Intelligence Officer with the 115th Precinct, was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
5. NYPD DETECTIVE MARIQUE BARTOLDUS (Shield # 5772) is being sued in her individual capacity and official capacity.
6. NYPD DETECTIVE ANTHONY CRESCIMANNO, assigned Shield Number # 2494 who at the time of this incident was employed with the NYPD, and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
7. NYPD OFFICER ANTHONY CRESCIMANNO (Shield # 2494) is being sued in his individual capacity and official capacity.
8. NYPD DETECTIVE JOSEPH MANZELLA, assigned Shield # 2492, who as the time of the incident was employed with the 113th Precinct Detective Squad, and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
9. NYPD DETECTIVE JOSEPH MANZELLA, (Shield # 2492), is being sued in his individual capacity and official capacity.

10. NYPD DETECTIVE COLIN SPARKS, assigned Shield # 3032, who at the time of this incident was employed with the 105th Precinct Detective Squad, and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
11. NYPD DETECTIVE COLIN SPARKS, (Shield # 3032), is being sued in his individual capacity and official capacity.
12. Police Officer John Doe Number 1 is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
13. Police Officer John Doe #1 is being sued in his individual capacity and official capacity.
14. New York Police Officers John and Jane Doe #'s 2-12 are and were at all times relevant herein an officer, employee, and agent of the New York City Police Department.
15. Police Officers John and Jane Doe #'s 2-12 are being sued in his/her individual capacity and official capacity.
16. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents, and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.
17. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as agents in the area of law enforcement and for which it is ultimately responsible. The defendant City of New

York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

18. Plaintiff in furtherance of his State causes of action filed a timely Notice of Claim upon the City of New York in compliance with Municipal Law Section 50.
19. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claim.
20. The City of New York held a 50(h) hearing examination of Plaintiff on May 19, 2021.

STATEMENT OF FACTS

21. On November 17, 2017, outside 227-14 111th Avenue in Queens County, New York, numerous police officers from the 105th Precinct, 113th Precinct, 115th Precinct, Emergency Services Unit (“ESU), and other unknown police commands, including upon information and belief, defendants NYPD Detective Marique Bartoldus (Shield # 5772), NYPD Detective Anthony Crescimanno (Shield # 2494), NYPD Detective Joseph Manzell (Shield #2494), NYPD Detective Colin Sparks (Shield # 3032) and P.O. John and Jane Does #1-12, and other as yet unknown police officers, at times acting in concert and at times acting independently, committed the following illegal acts against Plaintiff.
22. On November 17, 2017 at approximately 5:00 a.m., Plaintiff was dropped off in the vicinity of 227-14 111th Avenue in Queens, New York. Moments later, as he was walking toward a friend’s car to get a ride home, numerous defendant NYPD officers appeared on the street with their guns drawn and directed him to get down on the ground. Plaintiff complied with all police demands and was immediately placed under arrest.

23. Plaintiff had no contraband or weapons on his person at the time of his arrest, other than a small bag of what appeared to be marijuana in his pocket.
24. The moment defendant NYPD officer approached Plaintiff, he was not free to leave.
25. Plaintiff was taken in an NYPD vehicle to the NYPD 105th Precinct. Thereafter, a search warrant was executed on the premises at 227-14 111th Avenue, Queens, New York.
26. Prior to Plaintiff's arrest, on November 16, 2017, Detective Bartoldus applied for a search warrant in Queens County Criminal Court before Judge Ushir Pandit-Durant.
27. In support of the search warrant application, Detective Bartoldus provided an Affidavit in Support of the Search Warrant. Upon information and belief, this affidavit was devoid of any claim that Plaintiff was ever alleged to have possessed weapon or contraband in the presence of informants or defendant officers.
28. Upon information and belief, a paid confidential informant testified before Judge Pandit-Durant in support of a search warrant, and failed to allege Plaintiff was ever in possession of any weapon or narcotics while in informant's presence.
29. Shortly after Plaintiff's arrest, he was transported to the 105th Precinct. While Plaintiff was incarcerated at the 105nd precinct and Queens Central Booking, NYPD defendants, including arresting officer Bartolus, falsely and maliciously informed the Queens District Attorney's Office that Plaintiff had committed crimes including Criminal Possession of a Weapon in the 2nd degree, Criminal Possession of Ammunition, and Criminal Possession of a Forged Instrument, among other charges. Defendants knew these allegations to be false based on the lack of any material evidence that Plaintiff had committed any crime.
30. Upon information and belief, NYPD Officer Bartoldus informed the Queens County District Attorney that Plaintiff resided in the bedroom to the left of the entrance of the home. At the time

she provided this information to the District Attorney, she was aware there was no objective proof of Plaintiff's dominion or control over that bedroom or the contents therein.

31. Upon information and belief, NYPD Officer Bartoldus testified before the Queens County Grand Jury prior that Plaintiff resided in the bedroom to the left of the entrance of the home. Yet, she was aware there was no objective proof of Plaintiff's dominion or control over that bedroom or the contents therein.
32. Officer Bartolus testified before the Grand Jury that mail bearing Plaintiff's name was found in the first bedroom to the left of the entrance of the house. Upon information and belief, defendant Officer Bartolus deliberately withheld exculpatory information regarding mail allegedly recovered at the scene. In particular, defendant Officer Bartolus failed to inform the Queens County Grand Jury that the mail allegedly recovered bearing Plaintiff's name a different address than 227-14 111th Street. Upon information and belief, Officer Bartolus deliberately withheld this information because it tended to demonstrate Plaintiff did not reside in the home.
33. Upon information and belief, defendant Officer Bartolus also failed to inform the Queens County Grand Jury that Plaintiff provided a different home address than 227-14 11th Street at the time of his arrest. Upon information and belief, Officer Bartolus deliberately withheld this information because it tended to demonstrate Plaintiff did not reside in the home.
34. Defendant Officer Bartolus claimed to have recovered a stack of mail from the home with Plaintiff's name on it; however, she failed to voucher or photograph those additional pieces of mail. Upon information and belief, defendant Officer Bartolus claimed to have found additional pieces of mail to bolster allegations that Plaintiff resided in the home, when no such additional mail existed.

35. Upon information and belief, defendant officer Bartolus falsely and maliciously informed the Queens County District Attorney's office and the Queens County Grand Jury that men's clothing was found in the first bedroom on the left, when no such clothing existed.
36. Upon information and belief, defendant officer Bartolus claimed that a bullet was found in plain view on top of a dresser in the bedroom to the left of the residence's entrance, when, in reality, no bullets were in plain view. Internal NYPD invoices indicate all ammunition recovered from the aforementioned bedroom were recovered from a shoebox in a closet.
37. Upon information and belief, defendant officer Bartolus informed the Queens County Grand Jury and/or the Queens County District Attorney that Plaintiff was walking toward the front door of 227-14 111th street moments before his arrest. Officer Bartolus made these statements knowing that Plaintiff was in fact apprehended in the street, rather than the sidewalk, and was walking toward a parked car rather than the front door of 227-14 111th Street. Defendant Officer Bartolus made these statements for the purpose of bolstering her claim that Plaintiff resided at 227-14 111th Street.
38. At his arraignment, bail was set and Plaintiff was detained at Rikers Island for approximately fifty-six days from approximately November 17, 2017 to January 12, 2018. Plaintiff attended approximately twenty-five court appearances, including a criminal trial. The case was dismissed on January 28, 2021.
39. During Plaintiff's extended custody in Rikers Island, he was subjected to severe injuries, including being maced by Correction Officers. He received medical treatment at Rikers Island for the injuries he sustained while in DOC custody.

40. Plaintiff suffered severe emotional anguish as a result of his arrest, confinement, and prosecution. Since his release from custody, Plaintiff has been receiving therapy and mental health counseling to cope his condition.

FEDERAL CLAIMS

FIRST CLAIM FOR RELIEF

DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983

41. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
42. All of the aforementioned acts of defendants NYPD Detective Marique Bartoldus (Shield # 5772), NYPD Detective Anthony Crescimanno (Shield #2494), NYPD Detective Joseph Manzella (Shield #2492), NYPD Detective Colin Sparks (Shield # 3032) and NYPD Officers John and Jane Doe #'s 1-12, their agents, servants, and employees, were carried out under the color of state law.
43. All of the aforementioned acts deprived Plaintiff of his rights, privileges, and immunities guaranteed to citizens of the United States by the Fourth, Fifth, Sixth, and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.
44. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.
45. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York, the New York City Police Department, all under the supervision of ranking officers of said department.

46. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

SECOND CLAIM FOR RELIEF

FALSE ARREST UNDER 42 U.S.C. § 1983

47. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
48. As a result of the aforesaid conduct by defendants NYPD Detective Marique Bartoldus (Shield # 5772), NYPD Detective Anthony Crescimanno (Shield #2494), NYPD Detective Joseph Manzella (Shield #2492), NYPD Detective Colin Sparks (Shield # 3032) and NYPD Officers John and Jane Doe #'s 1-12, Plaintiff was subjected to an illegal, improper, and false arrest by the defendants NYPD Detective Marique Bartoldus (Shield # 5772), NYPD Detective Anthony Crescimanno (Shield #2494), NYPD Detective Joseph Manzella (Shield #2492), NYPD Detective Colin Sparks (Shield # 3032) and NYPD Officers John and Jane Doe #'s 1-12 were taken into custody and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.
49. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and was humiliated, searched, and subjected to handcuffing and other physical restraints, without probable cause.

THIRD CLAIM FOR RELIEF

UNLAWFUL SEARCH UNDER 42 U.S.C. § 1983

50. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

51. Plaintiff person was searched by defendants NYPD Detective Marique Bartoldus (Shield # 5772), NYPD Detective Anthony Crescimanno (Shield #2494), NYPD Detective Joseph Manzella (Shield #2492), NYPD Detective Colin Sparks (Shield # 3032) and NYPD Officers John and Jane Doe #'s 1-12 without an individualized reasonable suspicion that Plaintiff had committed any crime or was in possession of any illicit contraband, illegal weapons, or any other illegal substances.
52. As a result of the aforesaid conduct by defendants NYPD Detective Marique Bartoldus (Shield # 5772), NYPD Detective Anthony Crescimanno (Shield #2494), NYPD Detective Joseph Manzella (Shield #2492), NYPD Detective Colin Sparks (Shield # 3032) and NYPD Officers John and Jane Doe #'s 1-12, Plaintiff's person was illegally and improperly searched without consent, a valid warrant, probable cause, and a specific articulable factual basis supporting a reasonable suspicion and/or probable cause to believe Plaintiff was in possession of contraband or any illegal substance as set forth in the Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States.
53. As a result of the foregoing, Plaintiff was deprived of his Constitutional rights and has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.

FOURTH CLAIM FOR RELIEF

DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL UNDER 42 U.S.C. § 1983

54. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
55. Defendants NYPD Detective Marique Bartoldus (Shield # 5772), NYPD Detective Anthony Crescimanno (Shield #2494), NYPD Detective Joseph Manzella (Shield #2492), NYPD Detective

Colin Sparks (Shield # 3032) and NYPD Officers John and Jane Doe #'s 1-12 created false evidence against the plaintiff, alleging that he committed the crimes Criminal Possession of a Weapon in the 2nd degree, Criminal Possession of Ammunition, and Criminal Possession of a Forged Instrument. Defendants NYPD Detective Marique Bartoldus (Shield # 5772), NYPD Detective Anthony Crescimanno (Shield #2494), NYPD Detective Joseph Manzella (Shield #2492), NYPD Detective Colin Sparks (Shield # 3032) and NYPD Officers John and Jane Doe #'s 1-12 forwarded false evidence and false information to prosecutors in the Queens County District Attorney's Office – namely, the defendants falsely informed prosecutors *inter alia*, that they alleged Plaintiff had committed the crimes of Criminal Possession of a Weapon in the 2nd degree, Criminal Possession of Ammunition, and Criminal Possession of a Forged Instrument., when, in fact, they had no physical evidence or other reliable evidence to establish the Plaintiff had committed the aforementioned offenses, and, in fact, did not have probable cause to arrest him for said offenses. Defendant officers also failed to inform the Queens County District Attorney of evidence exculpating Plaintiff of any crime, including evidence that he did not reside in the home.

56. Defendants NYPD Detective Marique Bartoldus (Shield # 5772), NYPD Detective Anthony Crescimanno (Shield #2494), NYPD Detective Joseph Manzella (Shield #2492), NYPD Detective Colin Sparks (Shield # 3032) and NYPD Officers John and Jane Doe #'s 1-12 misled the prosecutors by creating false evidence against the Plaintiff and thereafter providing the aforementioned false statements throughout the criminal proceedings. This included evidence regarding mail allegedly found in the residence, the location of ammunition recovered from the residence, and clothing allegedly found in a bedroom residence.
57. In creating false evidence against the plaintiff, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, defendants NYPD Detective

Marique Bartoldus (Shield # 5772), NYPD Detective Anthony Crescimanno (Shield #2494), NYPD Detective Joseph Manzella (Shield #2492), NYPD Detective Colin Sparks (Shield # 3032) and NYPD Officers John and Jane Doe #'s 1-12 violated Plaintiff's constitutional right to a fair trial under the Sixth Amendment and the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

58. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause. He suffered significant injuries perpetrated by Department of Correction staff while in custody for sixty-five days.

FIFTH CLAIM FOR RELIEF

FAILURE TO INTERCEDE UNDER 42 U.S.C. § 1983

59. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
60. Defendants NYPD Detective Marique Bartoldus (Shield # 5772), NYPD Detective Anthony Crescimanno (Shield #2494), NYPD Detective Joseph Manzella (Shield #2492), NYPD Detective Colin Sparks (Shield # 3032) and NYPD Officers John and Jane Doe #'s 1-12 had an affirmative duty to intercede when Plaintiff's constitutional rights were being violated in defendants' presence by committing the acts of false arrest, unlawful imprisonment, and the misrepresentation and falsification of evidence regarding the circumstances surrounding Plaintiff's arrest throughout all phases of the criminal proceedings. Defendant officers were aware of exculpatory evidence negating Plaintiff's guilt, but failed to share it with the Queens County District Attorney's office in a timely manner, including the location of the ammunition allegedly recovered from the

residence, the absence of men's clothing from the bedroom on the left, and the quality and quantity of mail recovered from the subject location.

61. Defendants NYPD Detective Marique Bartoldus (Shield # 5772), NYPD Detective Anthony Crescimanno (Shield #2494), NYPD Detective Joseph Manzella (Shield #2492), NYPD Detective Colin Sparks (Shield # 3032) and NYPD Officers John and Jane Doe #'s 1-12 further violated Plaintiff's constitutional rights when they failed to intercede and prevent the violation or further violation of Plaintiff's constitutional rights and the injuries or further injuries caused as a result of said failure.
62. As a result of the defendants' failure to intercede when Plaintiff's constitutional rights were being violated in defendants' presence, Plaintiff sustained, *inter alia*, physical and emotional injuries, Plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

SIXTH CLAIM FOR RELIEF

MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983

63. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
64. Defendants NYPD Detective Marique Bartoldus (Shield # 5772), NYPD Detective Anthony Crescimanno (Shield #2494), NYPD Detective Joseph Manzella (Shield #2492), NYPD Detective Colin Sparks (Shield # 3032) and NYPD Officers John and Jane Doe #'s 1-12 misrepresented and falsified evidence before the Queens County District Attorney, including false allegations that Plaintiff committed the crimes of Criminal Possession of a Weapon, Possession of a Weapon, and Possession of a Forged Instrument, among other related charges.

65. Defendants NYPD Detective Marique Bartoldus (Shield # 5772), NYPD Detective Anthony Crescimanno (Shield #2494), NYPD Detective Joseph Manzella (Shield #2492), NYPD Detective Colin Sparks (Shield # 3032) and NYPD Officers John and Jane Doe #'s 1-12 did not make a complete and full statement of facts to the District Attorney. In particular, they failed to inform the District Attorney of objective proof that Plaintiff did not reside in the residence. They also failed to inform the District Attorney of the true location where the ammunition was recovered and alleged men's clothing was found in the bedroom, when no such clothing existed.
66. Defendants NYPD Detective Marique Bartoldus (Shield # 5772), NYPD Detective Anthony Crescimanno (Shield #2494), NYPD Detective Joseph Manzella (Shield #2492), NYPD Detective Colin Sparks (Shield # 3032) and NYPD Officers John and Jane Doe #'s 1-12 withheld exculpatory evidence from the District Attorney.
67. Defendants NYPD Detective Marique Bartoldus (Shield # 5772), NYPD Detective Anthony Crescimanno (Shield #2494), NYPD Detective Joseph Manzella (Shield #2492), NYPD Detective Colin Sparks (Shield # 3032) and NYPD Officers John and Jane Doe #'s 1-12 were directly and actively involved in the initiation of criminal proceedings against plaintiff.
68. Defendants NYPD Detective Marique Bartoldus (Shield # 5772), NYPD Detective Anthony Crescimanno (Shield #2494), NYPD Detective Joseph Manzella (Shield #2492), and NYPD Officers John and Jane Doe #'s 1-12 lacked probable cause to initiate criminal proceedings against plaintiff.
69. Defendants NYPD Detective Marique Bartoldus (Shield # 5772), NYPD Detective Anthony Crescimanno (Shield #2494), NYPD Detective Joseph Manzella (Shield #2492), and NYPD Officers John and Jane Doe #'s 1-12 acted with malice in initiating criminal proceedings against plaintiff.
70. Defendants NYPD Detective Marique Bartoldus (Shield # 5772), NYPD Detective Anthony Crescimanno (Shield #2494), NYPD Detective Joseph Manzella (Shield #2492), and NYPD Officers John and Jane

Doe #'s 1-12 were directly and actively involved in the continuation of criminal proceedings against plaintiff.

71. Defendants NYPD Detective Marique Bartoldus (Shield # 5772), NYPD Detective Anthony Crescimanno (Shield #2494), NYPD Detective Joseph Manzella (Shield #2492), and NYPD Officers John and Jane Doe #'s 1-12 lacked probable cause to continue criminal proceedings against plaintiff.
72. Defendants NYPD Detective Marique Bartoldus (Shield # 5772), NYPD Detective Anthony Crescimanno (Shield #2494), NYPD Detective Joseph Manzella (Shield #2492), and NYPD Officers John and Jane Doe #'s 1-12 acted with malice in continuing criminal proceedings against plaintiff.
73. Defendants NYPD Detective Marique Bartoldus (Shield # 5772), NYPD Detective Anthony Crescimanno (Shield #2494), NYPD Detective Joseph Manzella (Shield #2492), and NYPD Officers John and Jane Doe #'s 1-12 misrepresented and falsified evidence throughout all phases of the criminal proceedings.
74. Specifically, defendants NYPD Detective Marique Bartoldus (Shield # 5772), NYPD Detective Anthony Crescimanno (Shield #2494), NYPD Detective Joseph Manzella (Shield #2492), and NYPD Officers John and Jane Doe #'s 1-12 made the aforementioned false and misleading allegations regarding the circumstances surrounding Plaintiff's arrest.
75. Notwithstanding the perjurious and fraudulent conduct of defendants NYPD Detective Marique Bartoldus (Shield # 5772), NYPD Detective Anthony Crescimanno (Shield #2494), NYPD Detective Joseph Manzella (Shield #2492), and NYPD Officers John and Jane Doe #'s 1-12, the criminal proceedings were terminated in Plaintiff's favor on January 28, 2021.
76. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, he suffered economic damages, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

SEVENTH CLAIM FOR RELIEF**MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983**

77. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
78. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.
79. The aforementioned customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:
- A. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics; and,
 - B. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and,
 - C. fabricating evidence in connection with their arrest/prosecution in order to cover up police misconduct; and,
 - D. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing and regardless of probable cause, for the purpose of obtaining overtime compensation; and
 - E. failing to take reasonable steps to control and/or discipline police officers who lie, fabricate evidence, and/or commit perjury in order to cover up police misconduct and/or inflate arrest statistics.

80. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of the Plaintiff.
81. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the Plaintiff as alleged herein.
82. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the Plaintiff as alleged herein.
83. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the Plaintiff's constitutional rights.
84. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the Plaintiff's constitutional rights.
85. The acts complained of deprived the Plaintiff of their right:
- F. Not to be deprived of liberty without due process of law;
 - G. To be free from seizure and arrest not based upon probable cause;
 - H. Not to have summary punishment imposed upon them; and
 - I. To receive equal protection under the law.

WHEREFORE, CHRISTOPHER ROPER, Plaintiff, demands a judgment against the defendants on each cause of action in amounts to be determined upon the trial of this actions which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorney's fees inclusive of costs and disbursements of this action, interest and such other relief as appropriate under the law.

Dated: New York, New York
October 21, 2022

Respectfully submitted:

By: /s/ Sydney O'Hagan
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New York, New York 10005
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TO:

CITY OF NEW YORK: CORPORATION COUNSEL, 100 Church Street, New York, NY 10007

NYPD DETECTIVE MARIQUE BARTOLDUS, (Shield #5772), Intel Cis Fio Program, 1 Police Plaza,

NYPD DETECTIVE ANTHONY CRESCIMANNO, (Shield # 2494), Intel Cis Fio Program, 1 Police

Plaza, NYPD DETECTIVE JOSEPH MANZELLA, (Shield # 2492), 113th Detective Squad, NYPD

DETECTIVE COLIN SPARKS, (Shield # 3032), 105th Detective Squad.

I, **SYDNEY O'HAGAN**, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am attorney at the law firm of **SYDNEY O'HAGAN, ESQ.**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters wherein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff's is that Plaintiff is out of the county.

DATED: New York, New York
October 21, 2022

_____/s/ Sydney O'Hagan
Sydney O'Hagan, Esq.